

population, taxpayers and nontaxpayers alike. These are and must be, to adopt Professor Jaffe's useful phrase, "public actions" brought to vindicate public rights.⁷

It does not, however, follow that suits brought by non-Hohfeldian plaintiffs are excluded by the "case or controversy" clause of Article III of the Constitution from the jurisdiction of the federal courts. This and other federal courts have repeatedly held that individual litigants, acting as private attorneys-general, may have standing as "representatives of the public interest." *Scripps-Howard Radio v. Comm'n*, 316 U. S. 4, 14. See also *Commission v. Sanders Radio Station*, 309 U. S. 470, 477; *Associated Industries v. Ickes*, 134 F. 2d 694; *Reade v. Ewing*, 205 F. 2d 630; *Scenic Hudson Preservation Conf. v. FPC*, 354 F. 2d 608; *Office of Communication of United Church of Christ v. FCC*, 123 U. S. App. D. C. 328, 359 F. 2d 994. Compare *Oklahoma v. Civil Service Comm'n*, 330 U. S. 127, 137-139. And see, on actions *qui tam*, *Marvin v. Trout*, 199 U. S. 212, 225; *United States ex rel. Marcus v. Hess*, 317 U. S. 537, 546. The various lines of authority are by no means free of difficulty, and certain of the cases may be explicable as involving a personal, if remote, economic interest, but I think that it is, nonetheless, clear that non-Hohfeldian plaintiffs as such are not *constitutionally* excluded from the federal courts. The problem ultimately presented by this case is, in my view, therefore to determine in what circumstances, consonant with the character and proper functioning of the federal courts, such suits should be permitted.⁸ With this preface, I shall examine the position adopted by the Court.

⁷ L. Jaffe, *Judicial Control of Administrative Action* 483 (1965).

⁸ I agree that implicit in this question is the belief that the federal courts may decline to accept for adjudication cases or questions that, although otherwise within the perimeter of their constitutional jurisdiction, are appropriately thought to be unsuitable at